



Public Expenditure and Receipts Act 1968

1968 CHAPTER 14

An Act to increase contributions payable under the National Insurance Act 1965 and the National Health Service Contributions Act 1965, and to strengthen the provisions of the former Act as to enforcement; to restrict the enactments providing for the supply of milk to school children; to provide compensation for civil defence employees in connection with the reduction of activities under section 2 of the Civil Defence Act 1948; to provide for increasing, or for abolishing in the interests of economy, certain fees and other payments; and to amend section 3 of the Local Employment Act 1960 as regards consultation with the advisory committee; and for purposes connected therewith.

[20th March 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the National Insurance Act 1965 for the provisions set out in Schedule 1 there shall be substituted the provisions set out in Schedule 1 to this Act (in place of the provisions previously substituted by the National Insurance Act 1967); and there shall be paid out of moneys provided by Parliament any resulting increase in the sums so payable by way of Exchequer supplement under section 7 of the National Insurance Act 1965.

Contributions
under National
Insurance
Act 1965.
1965 c. 51.
1967 c. 73.

(2) The places liable to inspection under section 90 of the National Insurance Act 1965 for the purpose of ascertaining whether contributions are or have been payable, or have been duly paid, by or in respect of any person shall include any premises or place where an inspector appointed under the Act has reasonable ground for supposing that there is being carried on any agency or other business for the introduction or supply to persons requiring them of persons available to do work or perform services; and the persons subject to the obligations imposed by section 90(3) for that purpose shall include (in addition to the occupier of any such premises or place and the other persons specified in section 90(3)) any person who is or has been carrying on any such business.

1965 c. 51.

(3) Where a person is convicted of an offence under section 90(4)(b) of the National Insurance Act 1965 (refusal or neglect to answer questions, furnish information etc. when required under that section) and the refusal or neglect is continued by him after his conviction, he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding ten pounds for each day on which it is so continued.

Section 93(3) (liability of directors and others for offences of body corporate) and section 94 (general provisions as to prosecutions) of the National Insurance Act 1965 shall apply in relation to offences under this section as they apply in relation to offences under that Act.

(4) Sections 107(1) and 108 of the National Insurance Act 1965 (which require a draft of certain regulations under the Act to be approved by Parliament, and a preliminary draft of any regulations to be submitted to the National Insurance Advisory Committee) shall not apply to any regulations if they are contained in a statutory instrument made within the six months beginning with the date of the passing of this Act and the instrument states that it is made in consequence of the passing of subsection (1) above; but that subsection shall not come into force until such date as the Minister of Social Security may appoint by order made by statutory instrument, which shall be laid before Parliament after being made.

1967 c. 73.

(5) As from the coming into force of subsection (1) above there are hereby repealed section 1(1)(a) of the National Insurance Act 1967 and Schedule 1 to that Act.

National
Health Service
contributions.
1965 c. 54.

2. In the National Health Service Contributions Act 1965 for the provisions set out in the Schedule there shall, as from the coming into force of section 1(1) of this Act, be substituted the provisions set out in Schedule 2 to this Act.

3.—(1) Regulations made under section 49 of the Education School milk. Act 1944 as to the provision of milk for pupils shall not impose 1944 c. 31. on local education authorities the duty of providing milk for pupils other than pupils in attendance at primary schools or special schools nor for senior pupils in attendance at schools which are primary schools only by virtue of section 114(3) of that Act; and the power under section 78(2)(a) of that Act to make arrangements as to the provision of milk for pupils in attendance at schools not maintained by the local education authority shall apply only to primary schools and special schools and to junior pupils in other schools.

(2) Section 53 of the Education (Scotland) Act 1962 (which, 1962 c. 47. amongst other things, imposes a duty or, in certain circumstances, confers a power, on education authorities to provide, or to make arrangements for the provision of, milk for pupils and others) shall, so far as it relates to pupils in attendance at public schools, junior colleges or other educational establishments, be construed as imposing such a duty, or, as the case may be, conferring such a power, only in relation to pupils receiving primary education or special educational treatment; and the power under section 55 of that Act to make arrangements as to the provision of milk for pupils in attendance at schools other than public schools shall have effect only in relation to pupils receiving primary education or special educational treatment.

(3) Any regulations or arrangements made before the coming into force of this section shall cease to have effect in so far as they make provision to the contrary of subsection (1) or (2) above.

(4) Expressions used in this section and in the Education Acts 1944 to 1967 or, as regards Scotland, the Education (Scotland) Acts 1939 to 1967 shall be construed in like manner in this section as in those Acts.

(5) This section shall not have effect, as regards England and Wales, until the term following the summer term 1968 (and for this purpose "summer term" means the term ending last before the month of September) or, as regards Scotland, until the 1st August 1968.

4.—(1) The Secretary of State shall make regulations for the payment by such local authority or police authority as may be prescribed by or determined under the regulations, but subject to such exceptions or conditions as may be so prescribed, of compensation to or in respect of persons who are the holders of any such place, situation or employment as may be so prescribed and who suffer loss of employment or loss or diminution of emoluments which is attributable to the revocation or amendment of any regulations made under section 2 of the Civil Defence Act 1948. Compensation to civil defence employees for loss of employment etc. 1948 c. 5 (12, 13 & 14 Geo. 6.).

(2) The compensation payable by any authority shall be payable out of the same fund as expenditure of that authority under section 2 of the Civil Defence Act 1948, and section 3 of that Act (grants towards expenses of local and police authorities) shall apply in relation to expenses incurred in paying the compensation as if they were expenses incurred by virtue of section 2.

(3) Different regulations may be made under this section in relation to different classes of persons, and regulations so made may include provision as to the manner in which and the person to whom any claim for compensation under this section is to be made and for the determination of all questions arising under the regulations.

1948 c. 5
(12, 13 & 14
Geo. 6.).

(4) Regulations under this section shall not be made with reference to the revocation or amendment after the 31st March 1969 of regulations under section 2 of the Civil Defence Act 1948, but may be made with reference to the revocation or amendment of any such regulations and matters arising thereout before the making of the regulations under this section or the passing of this Act; but in so far as any regulations under this section are framed so as to operate with reference to a date earlier than the making thereof, the regulations shall not place any person other than the authority required by the regulations to pay compensation in a worse position than he would have been in if the regulations had not been so framed.

(5) Regulations made under this section shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) In this section "local authority" has the same meaning as in section 2 of the Civil Defence Act 1948.

Increase of
fees etc.

5.—(1) With a view to securing from the fees, charges or other payments required or regulated by the enactments mentioned in column 1 of Schedule 3 to this Act a net return corresponding more nearly with the cost of the matters for which they are payable, or to dispensing with payments from which a net return cannot reasonably be expected, those enactments may be amended by an order made by the Minister specified in relation to the enactment in question in column 2 of the Schedule, so as to vary any sum specified by the enactment as the amount or maximum amount of any payment, or so as to provide that any sum payable under the enactment shall cease to be payable.

(2) The powers conferred by subsection (1) above in relation to any enactment shall be exercisable in relation to that enactment as applied by any other enactment, and shall include power—

(a) to make different provision for different cases, or provision limited to specified cases; and

(b) to repeal any enactment superseded by the exercise of the powers (including any enactment amending an enactment mentioned in Schedule 3 to this Act); and

(c) to vary or revoke any previous order under subsection (1) above.

(3) The power to make orders under subsection (1) above shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) There shall be paid into the Exchequer any addition resulting from this section to the sums so payable by virtue of any other enactment.

(5) This section shall extend to Northern Ireland in so far as it affects—

(a) section 9 of the Fees (Increase) Act 1923 in its operation 1923 c. 4.
on any enactment relating to matters in respect of which the Parliament of Northern Ireland has no power to make laws; or

(b) section 90(2) of the Transport Act 1962.

1962 c. 46.

6. In section 3(1) of the Local Employment Act 1960 (which provides for the making of building grants to enterprises in development areas, but requires the Board of Trade to consult the advisory committee) for the words “after consultation with an advisory committee appointed by the Board (hereinafter referred to as ‘the advisory committee’)” there shall be substituted the words “after consultation, if the Board see fit, with the advisory committee (that is to say, an advisory committee appointed for the purposes of this Act by the Board)”. Procedure for building grants in development areas. 1960 c. 18.

7.—(1) This Act may be cited as the Public Expenditure and Receipts Act 1968. Short title and extent.

(2) Subject to section 5(5) above, this Act shall not extend to Northern Ireland, except in so far as section 1 or 2 affects the operation of any enactment which does so extend in the National Insurance Acts 1965 to 1967 or in the National Health Service Contributions Act 1965. 1965 c. 54.

SCHEDULES

Section 1.

SCHEDULE 1

1965 c. 51.

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 1
TO NATIONAL INSURANCE ACT 1965

RATES OF FLAT-RATE CONTRIBUTIONS

PART I

Employed persons

Description of employed person 1	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment 2	If by virtue of a non-participating employment 3
	s. d.	s. d.
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding £6	12 8	15 1
Earning remuneration at a weekly rate of £6 or less	7 5	8 8
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding £6	11 0	12 6
Earning remuneration at a weekly rate of £6 or less	6 4	7 1
Boys under the age of 18	8 8	—
Girls under the age of 18	7 1	—

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of £6 or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds, nor is deemed in accordance with regulations made under section 114(5) of this Act to exceed, £6 a week, and to be earning remuneration at a weekly rate exceeding £6 in any other case.

PART II
Employers

Description of employed person 1	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment 2	If by virtue of a non-participating employment 3
	s. d.	£ s. d.
Men over the age of 18—		
Earning remuneration at a weekly rate exceeding £6 or not being liable to pay a contribution as an employed person ...	14 1	16 6
Earning remuneration at a weekly rate of £6 or less and being liable to pay a contribution as an employed person ...	19 4	1 2 11
Women over the age of 18—		
Earning remuneration at a weekly rate exceeding £6 or not being liable to pay a contribution as an employed person	12 3	13 9
Earning remuneration at a weekly rate of £6 or less and being liable to pay a contribution as an employed person ...	16 11	19 2
Boys under the age of 18	9 6	—
Girls under the age of 18	7 10	—

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person 1	Weekly Rate of Contribution 2
	s. d.
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment)	18 0
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)	15 8
Boys under the age of 18	10 9
Girls under the age of 18	8 11

PART IV

Non-Employed Persons

Description of non-employed person 1	Weekly Rate of Contribution 2
	s. d.
Men between the ages of 18 and 65	14 3
Women between the ages of 18 and 60	11 2
Boys under the age of 18	8 2
Girls under the age of 18	6 4

Section 2.

SCHEDULE 2

1965 c. 54.

PROVISIONS TO BE SUBSTITUTED IN THE SCHEDULE TO NATIONAL
HEALTH SERVICE CONTRIBUTIONS ACT 1965

RATES OF NATIONAL HEALTH SERVICE CONTRIBUTIONS

Description of persons	Weekly Rate of Contribution
	s. d.
1. Employed men between the ages of 18 and 70, other than men over the age of 65 who have retired from regular employment	3 2
2. Employed women between the ages of 18 and 65, other than women over the age of 60 who have retired from regular employment	2 6
3. Employed boys and girls under the age of 18 ...	1 7
4. Employers	8
5. Self-employed men between the ages of 18 and 70, other than men over the age of 65 who have retired from regular employment	3 4
6. Self-employed women between the ages of 18 and 65, other than women over the age of 60 who have retired from regular employment	2 8
7. Self-employed boys and girls under the age of 18 ...	1 9
8. Non-employed men between the ages of 18 and 65 ...	3 4
9. Non-employed women between the ages of 18 and 60 ...	2 8
10. Non-employed boys and girls under the age of 18 ...	1 9

SCHEDULE 3

Section 5.

VARIATION OF FEES ETC.

Enactments requiring or regulating payment	Relevant Minister
1. (a) The Births and Deaths Registration Act 1836 (c. 86) section 35. The Births and Deaths Registration Act 1874 (c. 88) section 28. The Education Act 1944 (c. 31) section 94. The Marriage Act 1949 (c. 76). The Births and Deaths Registration Act 1953 (c. 20). The Registration Service Act 1953 (c. 37) section 18(3) and (4). (b) The Savings Banks Act 1887 (c. 40) section 10. The Friendly Societies Act 1896 (c. 25) section 97. The Young Persons (Employment) Act 1938 (c. 69) section 5. The Industrial Assurance and Friendly Societies Act 1948 (c. 39) Schedule 1, paragraph 7. The Shops Act 1950 (c. 28) section 35. The Factories Act 1961 (c. 34) section 178(1). The Education (Scotland) Act 1962 (c. 47) section 99(1). The National Insurance Act 1965 (c. 51) section 91(2).	The Minister of Health. The Minister of Health or, as regards Scotland, the Secretary of State.
2. The Places of Worship Registration Act 1855 (c. 81). The Marriage and Registration Act 1856 (c. 119) section 24.	The Minister of Health.
3. The Lyon King of Arms Act 1867 (c. 17) Schedule B.	The Secretary of State.
4. The Explosives Act 1875 (c. 17) section 49, and Schedule 3.	The Secretary of State.
5. The Fees (Increase) Act 1923 (c. 4) section 7.	The Secretary of State.

Enactments requiring or regulating payment	Relevant Minister
6. The Fees (Increase) Act 1923 (c. 4) section 9. The Local Government Act 1933 (c. 51) section 290(4). The Road and Rail Traffic Act 1933 (c. 53) section 47(2). The Local Government (Scotland) Act 1947 (c. 43) section 355(8). The Road Traffic Act 1960 (c. 16) section 249(1)(d). The Transport Act 1962 (c. 46) section 90(2).	} The Treasury.
7. (a) The Town and Country Planning (Scotland) Act 1954 (c. 73) section 50(8).	The Secretary of State.
(b) The Town and Country Planning Act 1962 (c. 38) section 99(9).	The Minister of Housing and Local Government.
8. The Road Traffic Act 1960 (c. 16) sections 212 and 213.	The Minister of Health or, as regards Scotland, the Secretary of State.
9. The Sea Fisheries Regulation Act 1966 (c. 38) section 9.	The Minister of Agriculture, Fisheries and Food.